

Shiv Bhushan Singh v. State of U.P. and 3 Others

High Court of Judicature at Allahabad · Division Bench · 22 March 2024 · 2024:AHC:52871-DB · WRIT - C No. - 9763 of 2024 · **No interference; objections and final assessment left to clause 6.8.**

HEADNOTE

A writ against a notice of provisional assessment for alleged theft of electricity was disposed of without interference. The petitioner may file objections, and the Electricity Department must then pass the final assessment order strictly in accordance with clause 6.8 of the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Shiv Bhushan Singh approached the Allahabad High Court in Writ-C No. 9763 of 2024 against the State of Uttar Pradesh and three others. His grievance was a notice of provisional assessment dated 6 August 2022, issued by the Electricity Department in a case of alleged theft of electricity. Counsel for the petitioner, the Standing Counsel for the State, and counsel for the Electricity Department were heard. The challenge was directed only at that provisional assessment notice.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

Provisional assessment notice left to objections and a final order under clause 6.8

HOLDING

No ground is made out to interfere with a notice of provisional assessment issued in an alleged theft case. The consumer may file objections, and the respondents must then pass the final assessment order strictly in accordance with clause 6.8 of the U.P. Electricity Supply Code, 2005. ¶ 3

PRINCIPLE TAGS

assessment-6.8-alternate-remedy The Court declined to interfere with the provisional assessment notice dated 6 August 2022 and left the petitioner to the objection and final-assessment procedure under clause 6.8. ¶ 3

para-6.8-objection-alternate-remedy It was left open to the petitioner to file objections to the provisional assessment, upon which the final assessment order had to follow clause 6.8. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PROVISIONAL ASSESSMENT DATED 6 AUGUST 2022 FOR ALLEGED THEFT OF ELECTRICITY WAS JUSTIFIED

The notice was not examined on merits. Objections and the final assessment order were left to clause 6.8. ¶ 2-3